

## 26PR00083 Estate of Charles R. Dion

County: santa-barbara

Division: Decedent's Estate

Hearing date: 2026-06-10

Motion: Petition for Probate and Letters Testamentary

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Tentative Ruling: Estate of Charles R. Dion

Case Number

26PR00083

Case Type

Decedent's Estate

Hearing Date / Time

Wed, 06/10/2026 - 04:30

Nature of Proceedings

Petition for Probate and Letters Testamentary

Tentative Ruling

Probate Notes:

Appearances required.

On February 19, 2026, Scott Christian Dion filed a Petition for Probate of Will and Letters Testamentary. On May 19, 2026, Gloria Foster filed a written objection to Mr. Dion's petition. On June 1, 2026, Ms. Goster also filed a competing petition for Probate of Will and Letters Testamentary, offering a subsequently executed will for probate, in contravention to the will offered by Scott Christian Dion. That petition was amended on June 4, 2026. The objection and competing petition place this matter at issue, requiring evidentiary hearing to resolve. (In re Estate of Lensch (2009) 177 Cal.App.4th 667, 676; Conservatorship of Farrant (2021) 67 Cal.App.5th 370, 377.)

The opposition contained an objection to the will and to the appointment of the personal representative.

Due to the objection, the following must be submitted:

Proof of Service of Summons. When a will is contested, Probate Code section 8250 requires a written objection to probate of the will be filed, and a copy of the objection along with a summons be served to all those entitled to notice listed in section 8110 [all entitled to take by intestate, and each devisee, executor, and alternative executor]. The summons must be served according to the procedures in the Code of Civil Procedure Title 5, Part 2, Chapters 3 and 4 [§ 412.10 et seq].

The petitioning party may file an answer to the objection, or demur, within 30 days after service of the summons. (Prob. Code, § 8250, subd(a) and 8251, subd. (a).) If a party fails to respond to a served summons within 30 days, the case is still at issue, but the non-responding party loses the right to further contest the appointment or the will. (Prob. Code, § 8251, subd. (c).)

Judges

Judge Denise M. Hippach

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